

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



August 10, 2018

Honorable Robert C. Gustaveson
Judge of the Superior Court
County of Los Angeles
400 Civic Center Plaza
Pomona, CA 91766-3201

Re: Gonzalez, Raymond
CDC No.: T53517
Case No.: KA051387-01
Date of Sentence: 04/24/2002

Dear Honorable Robert C. Gustaveson:

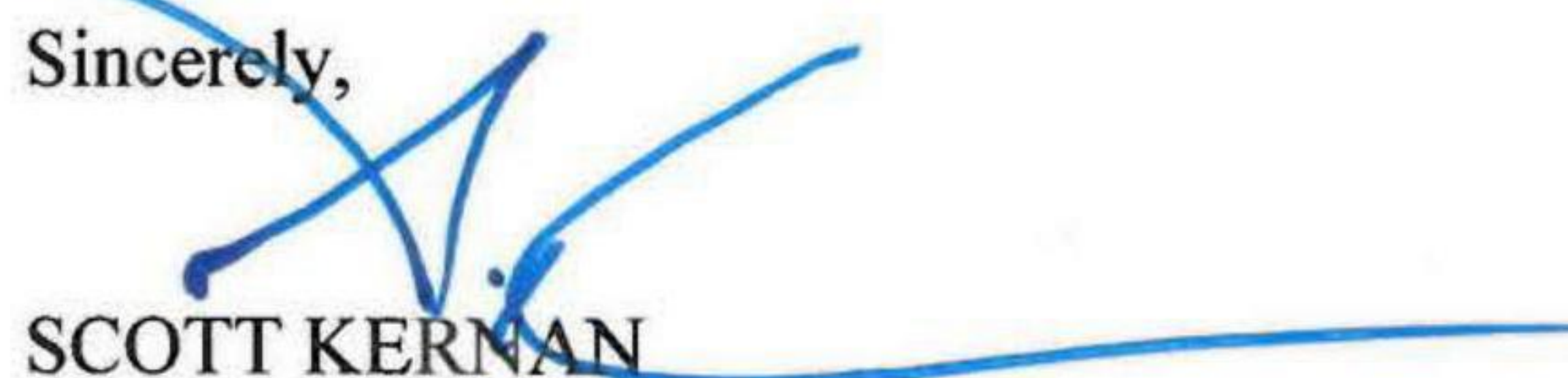
The purpose of this letter is to provide the court with authority to resentence Raymond Gonzalez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gonzalez was sentenced in 2002, and was convicted of section 245, subdivision (B), Assault S/A Firearm. Two enhancements were imposed; 12022.5(a) and 186.22(b)(1)(C). Both enhancements were attached to Inmate Gonzalez's section 245 offense.

In light of these convictions, please consider *People v. Rodriguez* (2009) 47 Cal.4th 501. In *People v. Rodriguez*, the California Supreme Court held that the trial court should not have imposed an enhancement for both Section 12022.5(a) and Section 186.22 (b)(1)(C), because both enhancements were imposed based on the defendant's firearm use. (*Ibid.*) In *Rodriguez*, the defendant was convicted of Section 245(a)(2), assault with a firearm. (*Id.* at p. 504.) The trial court imposed a sentencing enhancement for personal use of a firearm under Section 12022.5. This enhancement made defendant's crime violent per Section 667.5. (*Id.* at p. 505, 509) In addition, the trial court imposed an enhancement for Section 186.22(b)(1)(C); defendant qualified for this enhancement because he committed a violent felony. (*Id.* at p. 505.) The court held that both enhancements were based on Defendant's firearm use during the commission of a single offense, therefore under Section 1170.1, only the greater of the two enhancements should have been imposed.

Based on the above facts and case law, it appears that inmate Gonzalez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he or she be resentenced in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

T53517 ✓

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, POMONA EAST DISTRICT		FILED Superior Court of California County of Los Angeles FEB 21 2017 Sherri R. Carter, Executive Officer/Clerk By <u>Jennifer Ramirez</u> Deputy		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RAYMOND GONZALEZ	DOB: 01-15-82			KA051387-01 -A
AKA:				-B
CII NO.: A21400149				-C
BOOKING NO.: 6791063	☐ NOT PRESENT		-D	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☒ AMENDED ABSTRACT				
DATE OF HEARING 04-24-02	DEPT. NO. EAE	JUDGE ROBERT C. GUSTAVESON		
CLERK GREGORY JOHNSON	REPORTER DEBRA PINEDA	PROBATION NO. OR PROBATION OFFICER X-1755783 ☒ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE ROSS ALARI		COUNSEL FOR DEFENDANT DOUGLAS OTTO - PRIVATE COUNSEL ☐ APPOINTED		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 _____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/2 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO Item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
02	PC	245(B)	Assault S/A Firearm	2000	07/16/01	X			M						X		6	0
01	PC	245	Assault w/ Firearm	2000	07/16/01	X			M		X				X		1	0
06	PC	243(D)	Battery with Serious	2000	07/16/01	X			M		X						1	0
03	PC	422	Criminal Threats	2000	07/16/01	X			M					X	X		0	0
					/ /													
					/ /													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
02	12022.5(A)(1)PC	4	186.22(B)(1)PC	10 YEARS			14 0
01	186.22(B)(1)PC	STAYED					0 0
06	12022.7(A)PC	1 YEAR					1 0
03	12022.5(A)(1)	STAYED	186.22(B)(1)PC	STAYED			0 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
						0 0

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)

- ☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:		
7. ☐ Additional indeterminate term (see CR-292).		
8. TOTAL TIME:	23	0

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **RAYMOND GONZALEZ**

KA051387-01

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 200 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 200 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$ per PC 1465.8. e. Conviction Assessment: \$ per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): DNA PC 296

11. REGISTRATION REQUIREMENT: ☐ per (specify code section):

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify): *Amended Abstract of Judgment is completed upon receipt of a Letter from the Dept. of Corrections dated 01-27-17.

Remittitur originally filed on 12-09-03

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: H

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing
b. ☒ at resentencing per decision on appeal 12-24-03
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☐ other (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	480	417	63
B			
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
04 24 02		DMH	CDC CRC

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY SIGNATURE

JENNIFER REMIREZ

DATE

02-21-17

CR-290 (Rev. July 1, 2012)

FELONY ABSTRACT OF JUDGMENT

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